

Automated License Plate Readers (ALPRs)

426.1 PURPOSE AND SCOPE

The purpose of this policy is to provide guidance for the capture, storage and use of digital data obtained through the use of Automated License Plate Reader (ALPR) technology.

426.2 POLICY

The policy of The Colony Police Department is to utilize ALPR technology to capture and store digital license plate data and images while recognizing the established privacy rights of the public.

All data and images gathered by the ALPR are for official use by law enforcement. Because such data may contain confidential information, it is not open to public review.

426.3 ADMINISTRATION

The ALPR technology, also known as License Plate Recognition (LPR), allows for the automated detection of license plates. It is used by The Colony Police Department to convert data associated with vehicle license plates for official law enforcement purposes, including identifying stolen or wanted vehicles, stolen license plates and missing persons. It may also be used to gather information related to active warrants, homeland security, electronic surveillance, suspect interdiction and stolen property recovery.

All installation and maintenance of ALPR equipment, as well as ALPR data retention and access, shall be managed by the Support Services Bureau Commander. The Support Services Bureau Commander will assign members under his/her command to administer the day-to-day operation of the ALPR equipment and data.

426.4 OPERATIONS

Use of an ALPR is restricted to the purposes outlined below. Department members shall not use, or allow others to use, the equipment or database records for any unauthorized purpose.

- (a) An ALPR shall only be used for official law enforcement business.
- (b) An ALPR may be used in conjunction with any routine patrol operation or criminal investigation. Reasonable suspicion or probable cause is not required before using an ALPR.
- (c) While an ALPR may be used to canvass license plates around any crime scene, particular consideration should be given to using ALPR-equipped vehicles to canvass areas around homicides, shootings and other major incidents. Partial license plates reported during major crimes should be entered into the ALPR system in an attempt to identify suspect vehicles.
- (d) No member of this department shall operate ALPR equipment or access ALPR data without first completing department-approved training.
- (e) No ALPR operator may access confidential department, state or federal data unless authorized to do so.

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- (f) The officer should verify an ALPR response through the appropriate official law enforcement database before taking enforcement action that is based solely on an ALPR alert.

426.4.1 FIXED ALPR

Fixed ALPR system refers to ALPR cameras that are permanently affixed to a structure, such as a pole, traffic barrier, or a bridge.

Fixed ALPR system is a passive system, live data is not viewed.

Fixed ALPR systems shall monitor all license plates that come in contact with the ALPR camera. Fixed ALPR system searches of historical data can only be made for legitimate law enforcement purposes. A log of searches will be maintained by the system administrator.

Fixed ALPR systems may have the ability to notify the system administrator and/or other police personnel of an alert from the ALPR system Hot List. If notification of a HIT is made, the HIT should be verified through the appropriate official law enforcement database.

Fixed ALPR systems utilized by the department will be located in various locations within the boundaries of The City of The Colony.

426.4.2 FIXED ALPR LOCATIONS

Fixed ALPR cameras will be located at the following locations:

Camera 1: 3800 Main Street at State Highway 121 N/B

Camera 2: 4500 Memorial Drive at Main Street E/B

Camera 3: 7900 Main Street at Lone Star Ranch Parkway S/B

Camera 4: 4100 Paige Road at State Highway 121 N/B

Camera 5: 5600 South Colony Boulevard at State Highway 121 N/B

Camera 6: 5900 State Highway at Spring Creek Parkway W/B

Camera 7: 3900 State Highway 121 at Standridge Drive E/B

Camera 8: 2800 Plano Parkway at Windhaven Parkway N/B

Camera 9: 3800 Main Street at State Highway 121 S/B

Camera 10: 4100 Paige Road at State Highway 121 S/B

Camera 11: 5800 Morning Star Drive at State Highway 121 N/B

Camera 12: 5800 Memorial Drive at Navaho Lane W/B

Camera 13: 4600 North Colony Boulevard at Main Street W/B

Camera 14: 3900 Lebanon Road at Strike Middle School W/B

Camera 15: 3800 Blair Oaks Drive at State Highway 121 N/B

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Camera 16: 6900 Paige Road at North Colony Boulevard S/B

Camera 17: 5700 North Colony Boulevard at Morning Star Drive W/B

Camera 18: 4700 South Colony Boulevard at Main Street E/B

Camera 19: 6600 Windhaven Parkway at Silver Oak Drive W/B

Camera 20: 5200 Windhaven Parkway @ Trinity Drive E/B

Camera 21: 3400 Standridge Drive @ State Highway 121 N/B

426.5 SEARCHES

Searches of the ALPR system shall:

- (a) Be conducted on City of The Colony equipment. Employees shall access the ALPR system only through City-issued or reimbursed computers, mobile devices, or other City-approved equipment. Personal devices shall not be used to access the ALPR system.
- (b) Be conducted while on duty. Employees shall access and search the ALPR system only in the course and scope of their official duties.
- (c) Use the appropriate search parameters. Employees shall select the search type that is reasonably appropriate for the purpose of the search and the investigation or official police activity being conducted.
- (d) Include a valid case number or other authorized identifying number. The case number field is mandatory. Employees shall enter a valid, traceable identifying number associated with the police activity or investigation for which the search is being conducted.
 - 1. For purposes of this requirement, an acceptable identifying number includes:
 - (a) Call for Service Number
 - (b) Incident Number
 - (c) Case Number
 - (d) Other Law Enforcement Agency Case Number
 - (e) Citation Number
- (e) Employees shall not circumvent or defeat the case number requirement by entering a fictitious, non-trackable, incomplete, or otherwise meaningless entry, including but not limited to "0," a period, a space, or any other character or entry used solely to satisfy the system's required-field function.
- (f) include a specific and articulable reason for the search. The reason field is mandatory and employees should select from the drop down box the most appropriate reason for the search.
- (g) Employees shall not circumvent or defeat the reason requirement by entering a vague, meaningless, or non-substantive entry, including but not limited to a period, a space,

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a single character, or generic terms that do not adequately describe the purpose of the search.

- (h) Ensure search documentation is accurate. Employees are responsible for ensuring that information entered into the ALPR system is accurate, complete, and associated with a legitimate law enforcement purpose. Entries made solely to satisfy a mandatory system field, without accurately documenting the purpose or associated police activity, are prohibited.

426.6 DATA COLLECTION AND RETENTION

All stored ALPR data should be retained in accordance with the established records retention schedule. ALPR related data will be stored for a maximum of 30 days. Thereafter, ALPR data should be purged unless it has become, or it is reasonable to believe it will become, evidence in a criminal or civil action or is subject to a discovery request or other lawful action to produce records.

426.7 ACCOUNTABILITY

All data will be closely safeguarded and protected by both procedural and technological means. The Colony Police Department will observe the following safeguards regarding access to and use of stored data:

- (a) All ALPR data downloaded to the mobile workstation and in storage shall be accessible only through a login/password-protected system capable of documenting all access of information by name, date and time.
- (b) Members approved to access ALPR data under these guidelines are permitted to access the data for legitimate law enforcement purposes only, such as when the data relate to a specific criminal investigation or department-related civil or administrative action.
- (c) ALPR system audits should be conducted on a regular basis.

426.8 AUDIT

To ensure compliance with Department policy and applicable laws, the Assistant Chief of the Patrol Division shall conduct periodic audits of the Automated License Plate Reader (ALPR) system. Audits shall be conducted on a regular schedule, but no less than once per month, and shall include a review of system access, searches, alerts, and other system activity as deemed appropriate.

The purpose of these audits is to identify potential misuse, abuse, unauthorized access, or violations of Department policy. Any suspected policy violation identified during an audit shall be documented and referred for further review and investigation in accordance with Department procedures. Appropriate corrective action or discipline may be imposed when warranted by the facts and circumstances of the case.

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426.9 DATA SHARING AND NETWORK ACCESS

The Colony Police Department recognizes that license plate reader data sharing is a two-way process. The Department may share its license plate reader data with other law enforcement agencies, and Department personnel may have access to license plate reader data shared by other agencies. Each participating agency is responsible for establishing and maintaining its own data-sharing settings and determining which agencies may access its data.

The Department will review its license plate reader data-sharing settings and network-sharing logs as part of the Department's periodic audit process. The purpose of this review is to ensure that access to Department data remains appropriate, authorized, and consistent with legitimate law enforcement purposes.

The Colony Police Department will only authorize access to its license plate reader data for law enforcement agencies that the Department determines have a legitimate law enforcement interest in accessing the data. The Department's normal data-sharing network is limited to law enforcement agencies located within the State of Texas and agencies located within a 500-mile radius of the City of The Colony, Texas.

When a legitimate investigative need exists, the Department may, with supervisory approval, share license plate reader data with or request license plate reader data from a law enforcement agency located outside the State of Texas or beyond the 500-mile geographic area. Such access or sharing shall be limited to circumstances in which the data is determined to have investigative value and shall not be used to circumvent the Department's established geographic limitations.

Because each agency independently establishes its own data-sharing settings, it is possible for another law enforcement agency to identify or list The Colony Police Department as a data-sharing partner without the Department's knowledge or authorization. The existence of such a designation does not, by itself, establish that The Colony Police Department has access to that agency's data. Access to another agency's data is dependent upon that agency's sharing settings and the network access available to Department personnel.

Employees of The Colony Police Department are limited in their ability to search license plate reader networks. Department personnel may only search networks made available to the Department within the State of Texas and within a 500-mile radius of the City of The Colony, except when a legitimate investigative need requires access to data outside those geographic limitations and supervisory approval has been obtained.

The Department recognizes that other law enforcement agencies may establish broader sharing parameters for their own data, including nationwide sharing. Such settings are established and controlled by the individual agency and do not expand the geographic search authority or access available to The Colony Police Department employees.

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426.10 RELEASING ALPR DATA

The ALPR data may be shared only with other law enforcement or prosecutorial agencies for official law enforcement purposes or as otherwise permitted by law, using the following procedures:

- (a) The agency makes a written request for the ALPR data that includes:
 - 1. The name of the agency.
 - 2. The name of the person requesting.
 - 3. The intended purpose of obtaining the information.
- (b) The request is reviewed by the Support Services Bureau Commander or the authorized designee and approved before the request is fulfilled.
- (c) The approved request is retained on file.

Requests for ALPR data by non-law enforcement or non-prosecutorial agencies will be processed as provided in the Records Maintenance and Release Policy.